

Court No. - 5

Case :- CONTEMPT APPLICATION (CIVIL) No. - 50 of 2016

Applicant :- M/S Shiv Ganga Aata Mill

Opposite Party :- Srikant Pandey, Executive Engineer And Anohter

Counsel for Applicant :- Sunil Kumar Ram

Hon'ble Surya Prakash Kesarwani,J.

Heard Sri Sunil Kumar Ram, learned counsel for the applicant.

By order dated 2.12.2015 passed in Writ-C No.65378 of 2015 filed by the applicant, the writ Court directed as under :

"The petitioner disputes the electricity bills that have been raised by respondent-Purvanchal Vidhyut Vitran Nigam Ltd.

It is pointed out by Sri Rakesh Pandey, learned counsel appearing for the petitioner that objections have been filed under Clause 6.5 of the Electricity Supply Code, 2005, but no decision has been taken as yet, though they are required to be decided within seven days.

Sri Mahboob Ahmad, learned counsel appearing for the respondent-Power Corporation states that the objections filed by the petitioner shall be decided.

The writ petition is, accordingly, disposed of with a direction to the respondent-Power Corporation to make all endeavours to decide the objections filed by the petitioner within the stipulated time."

Learned counsel for the applicant submits that a certified copy of the aforesaid order was submitted for compliance before the opposite parties by registered post dated 10.12.2015 but the opposite parties have wilfully not complied with the order and thus have committed civil contempt liable for punishment under Section 12 of the Contempt of Courts Act 1971.

Considering the facts and circumstances of the case one more opportunity is afforded to the opposite parties to comply with the aforesaid order of the writ Court within a further period of two weeks from the date of production of a certified copy of this order.

With the aforesaid observations, this application is disposed of at this stage with liberty to the applicant to move a fresh application if the order is not complied with by the opposite party.

Order Date :- 8.1.2016

LJ/-